

# Pre-lecture

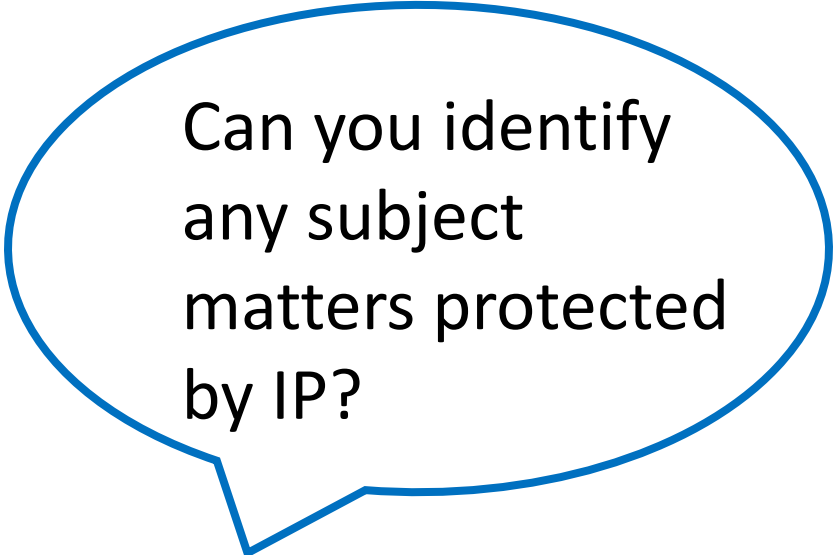
# The story starts with a potato...



- Local farmers have cultivated a special type of potato for centuries, which is popular in the market for its sweet taste.
- The taste comes from the local area's soil and weather, and locals' farming skills.
- In selling potatoes, farmers affix the area's name to the potatoes' packages- woven bags handmade by them
- Farmers also maintained a remedy skill, using potatoes to reduce swelling.
- Locals gather to celebrate the harvest of potatoes every autumn when they sing and dance together. The songs and dances are passed down for centuries, but are always changing

Can you identify any subject matters protected by IP?

- Some potato traders sell potatoes from other areas but claim their potatoes originate from the above area.
- An agricultural company developed a method of cultivating potatoes based on locals' farming skills; and patented the method.
- A fashion company produced leather bags by mimicking woven bags handmade by locals.
- A pharmacy company noticed the remedy skill, extracted active elements from potatoes, and turned the extracts into a medicine. Then, it patented the medicine.
- A film company shot the harvest singing and dancing and sold audio-visual recordings.



Can you identify any subject matters protected by IP?

The potato story demonstrates

- (1) How TK is maintained and developed by local communities today
- (2) How TK is exploited by externals today
- (3) The 'interface' between TK and the IP framework
- (4) The tension/gap between TK and the IP framework

Try to figure out the above four questions using the underlined examples in the photo story

# Traditional Knowledge

Jiarong Zhang

- What is TK

Why is IP considered to protect TK

- The interface between TK and IP

What areas of IP could be used to protect TK and TK-based creation/innovation

- The gaps between TK and IP

Other options for the protection of TK

What is Traditional Knowledge?

# Defining characteristics



Information- knowledge, skills, and practices



developed, sustained, and passed on through generations  
within a community

(e.g., community members, family, individual)



Form part of the community's cultural or spiritual identity

*(the link with a community makes it 'traditional')*

# Subjects

Traditional knowledge (general sense) includes:

- Traditional knowledge (narrow sense)
- Traditional cultural expressions
- ~~Genetic resources (previous)~~

## WIPO

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### Traditional Knowledge

Traditional knowledge (TK) is knowledge, know-how, skills and practices that are developed, sustained and passed on from generation to generation within a community, often forming part of its cultural or spiritual identity.

While there is not yet an accepted definition of TK at the international level, it can be said that:

- **TK in a general sense** embraces the content of knowledge itself as well as [traditional cultural expressions](#), including distinctive signs and symbols associated with TK.
- **TK in the narrow sense** refers to knowledge as such, in particular the knowledge resulting from intellectual activity in a traditional context, and includes know-how, practices, skills, and innovations.

Traditional knowledge can be found in a wide variety of contexts, including: agricultural, scientific, technical, ecological and medicinal knowledge as well as biodiversity-related knowledge.

<https://www.wipo.int/en/web/traditional-knowledge/tk/index>

## Traditional knowledge (TK)(narrow sense)

knowledge, know-how, skills resulting from intellectual activity in fields such as agriculture, environment, medicine, etc.



Acupuncture



Farming skills

Knowledge: Artemisinin can treat fever



Medicine for virus



Patented

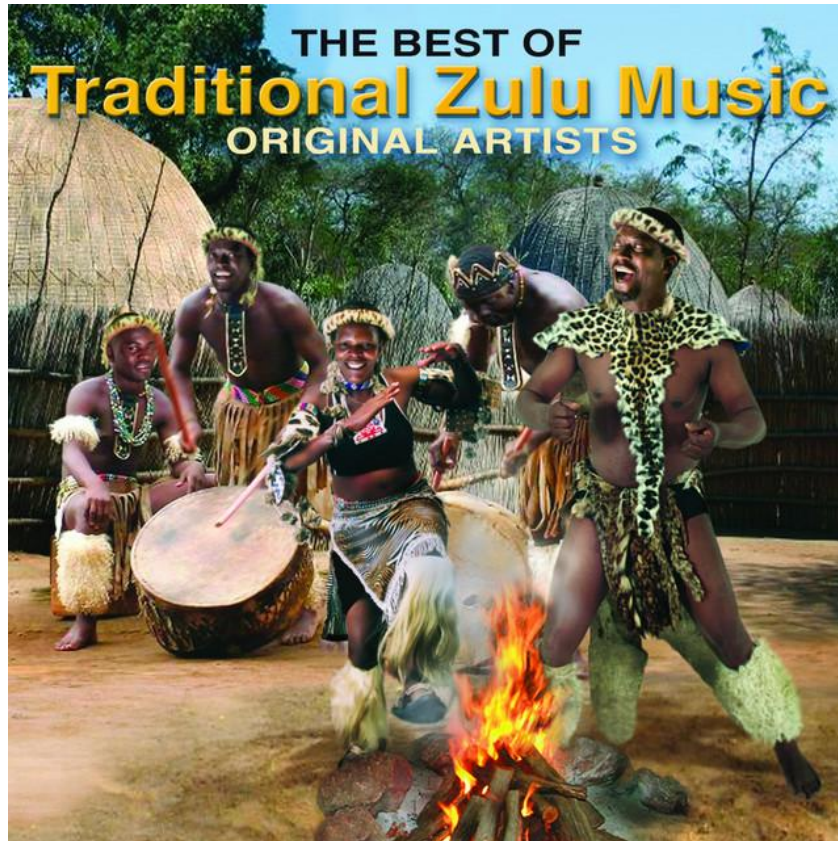
## Traditional cultural expressions (TCEs)

artistic and cultural expressions

verbal (e.g., narratives), musical (e.g., songs), action (e.g., dances), tangible (e.g., handicrafts, designs), and names, signs and symbols



traditional Zulu music



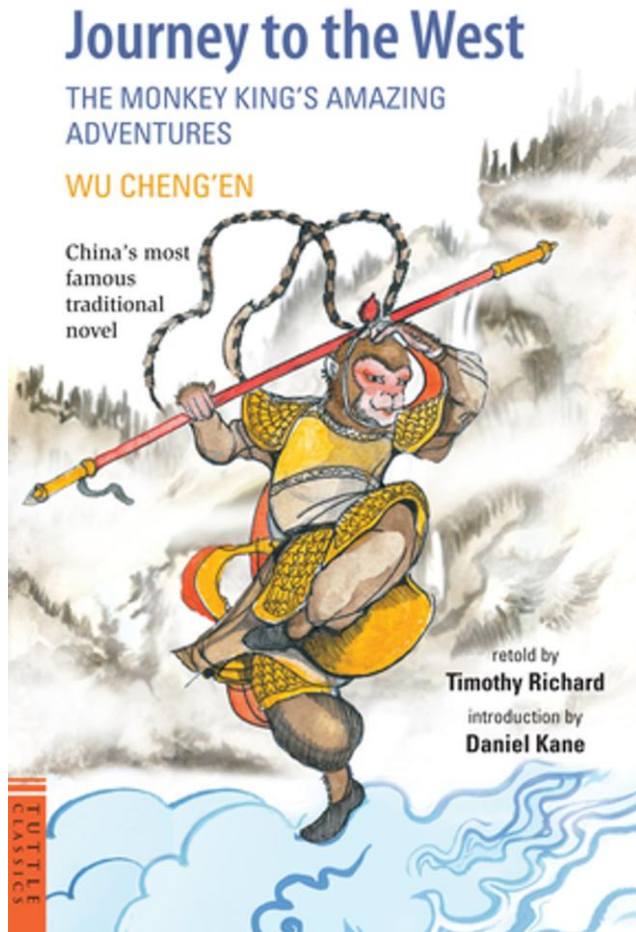
soundtrack song in Disney movie

*Linda v. Disney*  
(South Africa, 2006)

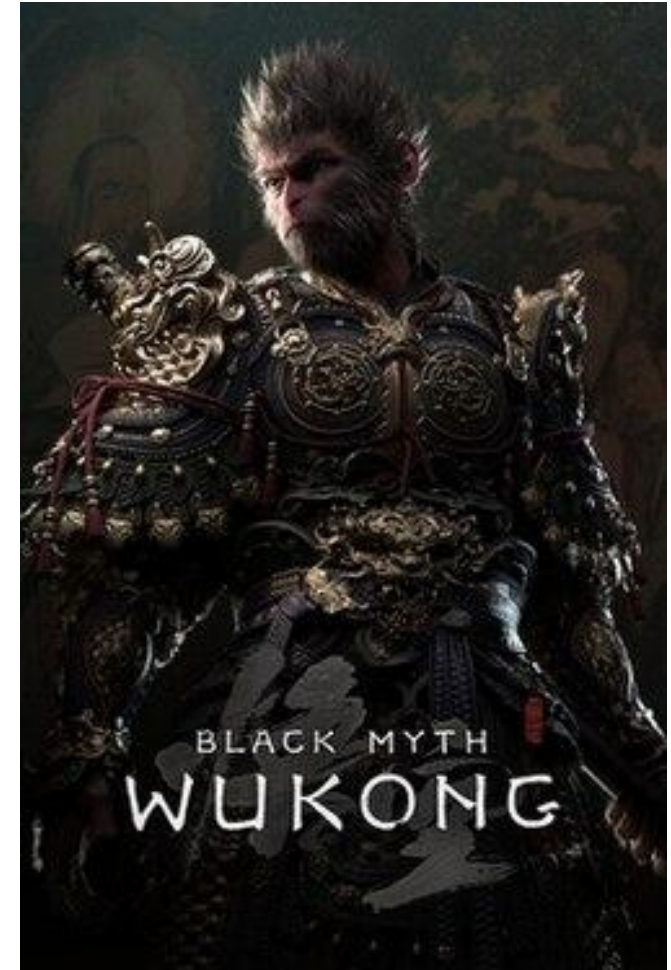


<https://www.youtube.com/watch?v=AJZ7AuFrKhQ>

## Traditional novel: The Monkey



## Video game: Black Myth

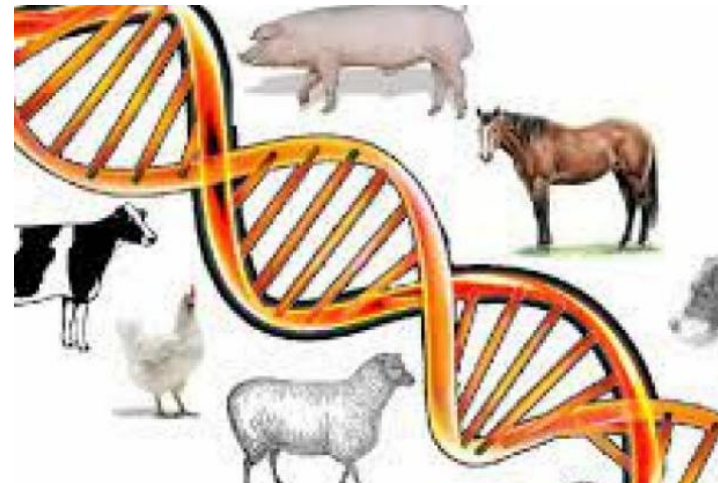


[https://www.youtube.com/watch?v=\\_mAnlVXtDD8](https://www.youtube.com/watch?v=_mAnlVXtDD8)

## Genetic resources (GRs)

biological materials that contain genetic information and can be reproduced  
e.g., medicinal plants, animal breeds

*--in nature unlike IP (intellectual creations), not protected as IP subject matter*



# Communities v. External exploiters

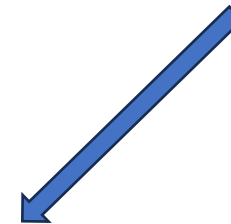
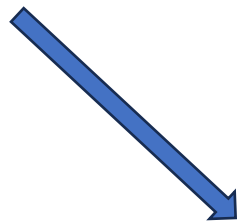
## Local, indigenous

disadvantaged in their social, economic, and political status



## External exploiters

advantaged, multinational  
(e.g., pharmacy,  
biotechnology companies)



***Disputes over  
access, ownership/control, benefit-sharing***

# Why IP law?

## Interests/needs of Communities

- Prevent unauthorised use
- Prevent offensive use
- Prevent false claim as to origin
- Be acknowledged in use
- Share benefits arising from use
- ...

## Interests/needs of Externals



# Why IP law?

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## Interests/needs of Externals

## IP

- Ownership
- Moral rights (derogatory)
- Moral rights (attribution); passing off
- Moral rights (attribution)
- Economic rights (remuneration)

The interface between IP and TK

# What IP provides

- Protects creation/innovation
- Exclusive rights: enable owners to make certain uses, while excluding others from such uses
- Protects moral interests (e.g., attribution, derogatory)
- Protects economic interests (remuneration)

- creation/innovation in traditional context
- Prevent unauthorised use
- Prevent offensive use  
Prevent false claim as to origin  
Be acknowledged in use
- Share benefits arising from use

# What area of IP law



Patent

Trade secret/confidential information



Trademark (and passing off)

Geographical indications (GIs)



Copyright

Related rights



Industrial designs

# TK + TK-based



**Patent:** inventions based on TK

(e.g., a product based on extractions of active elements from...)



**Trade secrets:** skill and know-how, hasn't been disclosed

(e.g., a skill in cultivating...; the knowledge of something can remedy...)



**Trademark:** names and signs associated with TK

(e.g., the area's name)



**GI:** products whose qualities come from the geo location

(e.g., the local area's soil and weather; the locals' skill)

# TCEs +TCEs-based



**Copyright:** work inspired by TCEs (e.g., music, dance)

**Related rights:** recording, performance of TCEs



**Trademark** (certification & collective marks): signs

**Passing off:** against the false claim as to origin



**GI:** tangible goods whose qualities come from location



**Industrial designs:** design of tangible goods  
(e.g., handicrafts)

Now you should be able to identify **which area of IP law** could potentially be used to protect which of **the underlined items**, and identify who is the rightsholder

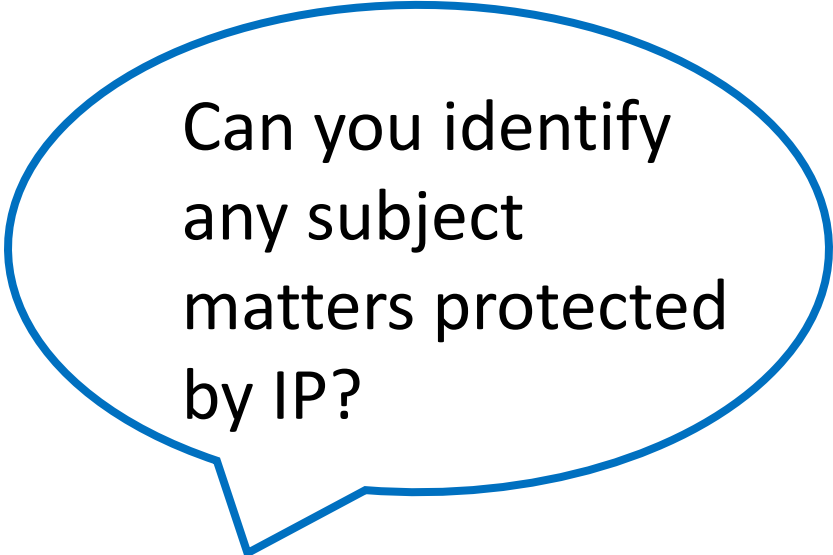
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Can you identify  
any subject  
matters protected  
by IP?

The gaps between IP and TK

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**WIPO/GRTKF/IC/47/8**  
**ORIGINAL: ENGLISH**  
**DATE: MARCH 21, 2023**

**Intergovernmental Committee on Intellectual Property and Genetic  
Resources, Traditional Knowledge and Folklore**

**Forty-Seventh Session**  
**Geneva, June 5 to 9, 2023**

**THE PROTECTION OF TRADITIONAL KNOWLEDGE: UPDATED DRAFT GAP  
ANALYSIS**

*Document prepared by the Secretariat*

**WIPO IGC: Gap Analysis**

|       |                                                                                              |  |
|-------|----------------------------------------------------------------------------------------------|--|
| I     | GAPS IN THE EXISTING LEGAL MECHANISMS.....                                                   |  |
| (i)   | Subject matter not covered under existing IP law.....                                        |  |
|       | TK that is not covered by existing forms of IP protection. ....                              |  |
|       | Innovation that is cumulative and collective over generations within the one community ..... |  |
| (ii)  | Beneficiaries or right holders not recognized .....                                          |  |
|       | Recognition of collective rights, interests and entitlements within a TK system .....        |  |
| (iii) | Clarifying or confirming the application to TK of existing principles.....                   |  |
|       | A norm expressly applying patent principles in TK contexts .....                             |  |
| (iv)  | Forms of protection not provided under existing international standards.....                 |  |
|       | A specific disclosure requirement relating to TK.....                                        |  |
|       | Protection against unjust enrichment, misappropriation or misuse of TK.....                  |  |
|       | Prior informed consent .....                                                                 |  |

- Individual property
- Original; Novel; Distinctive
- Individual creatorship



- Community identity
- Passed on through generations  
new variation, addition?
- Collectively developed



- TK is seen as in the public domain
- IP cannot accommodate communities' needs
- Amend/reform IP: Resist from current beneficiaries?

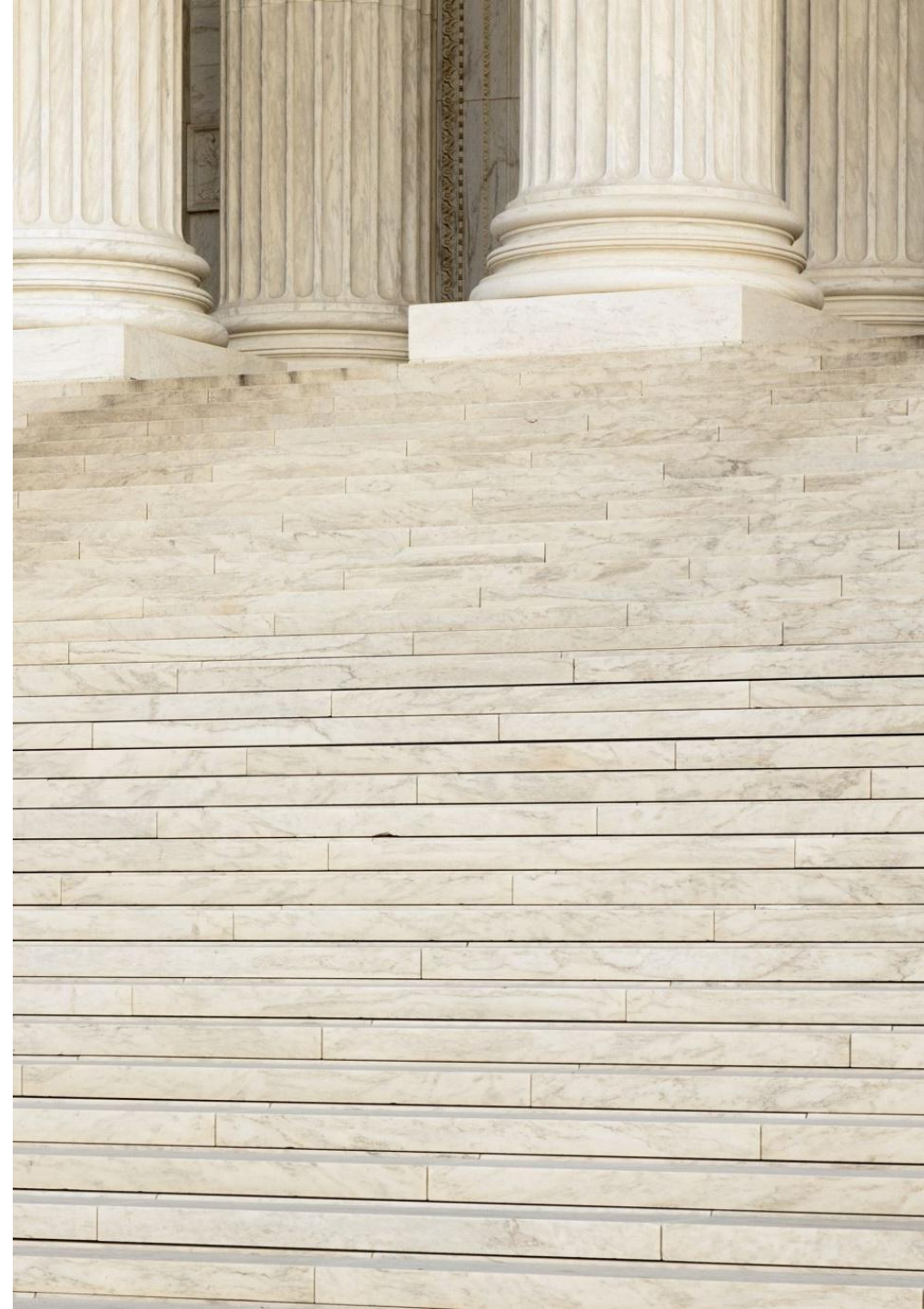
# Options of Protection

## New IP rules

in a binding international treaty

Berne Convention, art. 15 (4): protection of unpublished and anonymous works

WPPT art.2 & Beijing Treaty art.2: protect performers of expressions of folklore



# Options of Protection

## Sui generis law

IP-type, but stand-alone, designed for TK

WIPO-UNESCO Model Provisions, 1982

## Other Laws

cultural heritage law, contract, privacy law,  
etc.

